THE IHL KERNEL

WHITEPAPER

By: Juan Diego Arregui Acosta

An Open-Source Operating System for International Humanitarian Law

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Free Open-Source Legal Artifact (FOSLA)

Acknowledgements

This work is largely inspired by Prof. Álvaro Paúl's work, *The American Convention on Human Rights: Updated by the Inter-American Court*.[1] His original methodology—making the jurisprudence of the Inter-American Court accessible to non-specialised readers through a prescriptive, concise format—was foundational for this project. I would not have encountered this piece had it not been for Pier Paolo Pigozzi, the first law professor to conceive of an interactive version of Paúl's paper, and who with great patience taught me this methodology. A special thank you also to Johanna Fröhlich, who expanded my methodological understanding through her research seminars.

I want to acknowledge the importance of the Jean Pictet Competition in inspiring thousands of young people to become IHL professionals by "taking the law out of the books."[2] A special mention to my teammate and lifelong friend Diego Chavez, with whom I learned everything I know about IHL.

I owe a structural debt to Linus Torvalds, whose ethics and commitment to open-source software and the Linux Kernel[3] heavily inspired the architecture of this methodology.

An acknowledgement of the humanitarian workers around the world who put their lives on hold and at risk for the improvement of all of ours.

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[1]Paúl, Álvaro, *The American Convention on Human Rights: Updated by the Inter-American Court*, Juris Dictio N° 20, Dossier: Vigilar al Vigilante, pp. 53–86 (2017). Available at SSRN: https://ssrn.com/abstract=3090993

[2]Jean Pictet (1914–2002) was instrumental in drafting the 1949 Geneva Conventions and their Commentaries, and negotiating the 1977 Additional Protocols. The Jean-Pictet Competition, founded in 1989, is the most prestigious international humanitarian law moot competition. See https://www.concourspictet.org

[3]Torvalds, Linus, and Diamond, David, *Just for Fun: The Story of an Accidental Revolutionary*, HarperCollins (2001).

Introduction

The IHL Kernel is a digital tool that aims to simplify International Humanitarian Law by functioning as a consolidated source of sources within the IHL domain. It is essential to acknowledge that IHL treaty law has been shaped and affected by multiple normative streams. The authoritative enumeration of international law sources is found in Article 38(1) of the Statute of the International Court of Justice:[4]

> (a) International conventions, whether general or particular, establishing rules expressly recognised by the contesting States;
>
> (b) International custom, as evidence of a general practice accepted as law;
>
> (c) The general principles of law recognised by civilised nations; and, as subsidiary means for the determination of rules of law:
>
> (d) Judicial decisions and the teachings of the most highly qualified publicists of the various nations.

This multiplicity produces what scholars call *normative fragmentation*—the absence of a "Code of International Law."[5] The International Law Commission's landmark 2006 study observed that fragmentation is structurally inherent to a decentralised legal order lacking a central world legislature.[6] The large decentralisation of sources means there is no single authority to determine definitively what IHL prescribes at any given moment.

This Kernel aims to address that gap—not as a legally binding instrument, but as a central *Operating System* that serves as a reference point to navigate the complexity of the law, much as a computer kernel navigates code as a bridge between users and hardware.

Methodological Note and Warning

This whitepaper is a navigational instrument, not a source of law. It must not be cited as authority in legal proceedings nor treated as a substitute for the primary sources it indexes. The author has endeavoured to ensure accuracy, but errors of omission and interpretation are inevitable in a project of this scope. Users are strongly encouraged to verify every reference against the original treaties, commentaries, and case law.

Key gaps addressed by this research and its original contribution:

First, this project simplifies the complexity of IHL and its interaction with adjacent branches—International Law broadly, International Criminal Law,[7] International Human Rights Law, and Refugee Law. For humanitarian workers deployed in remote contexts without reliable internet connectivity, this document serves as a portable reference that can be consulted when needed most.

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[4]Statute of the International Court of Justice, Art. 38(1). Adopted 26 June 1945, entered into force 24 October 1945.

[5]Hafner, Gerhard, "Pros and Cons Ensuing from Fragmentation of International Law," *Michigan Journal of International Law*, Vol. 25, p. 849 (2004).

[6]International Law Commission, *Fragmentation of International Law: Difficulties Arising from the Diversification and Expansion of International Law*, UN Doc A/CN.4/L.682, 13 April 2006 (Finalized by Martti Koskenniemi).

[7]Rome Statute of the International Criminal Court, adopted 17 July 1998, entered into force 1 July 2002, 2187 UNTS 3.

Second, the project makes IHL more accessible for law students by consolidating references to all major sources and showing how they interact within a single framework, rather than requiring navigation across dozens of treaties, commentaries, and databases.

Third, towards the creation of an AI system that can answer key IHL questions both in the field and in academic settings while avoiding sycophancy and hallucination,[8] this Kernel serves as a unified source for AI interaction. The critical advantage is that the context, parameters, and token usage can be dramatically reduced, enabling lightweight models to be run locally on mobile devices for IHL consultation in the field.

[8]On AI hallucination risks in legal contexts, see Ji, Ziwei et al., "Survey of Hallucination in Natural Language Generation," *ACM Computing Surveys*, Vol. 55, No. 12 (2023).

1. Open-Sourcing the Law (FOSLA)

The Law, generous as it is, requires domain-specific knowledge to navigate a complex system of normative interactions. International Law adds an additional layer of abstraction, demanding further expertise to distinguish, for instance, between Hard Law (binding treaties, customary international law) and Soft Law (resolutions, guidelines, declarations with persuasive but non-binding force).[9] Making a single document available where the categories, source types, databases, and underlying logic are accessible to the general public is key for effective implementation and understanding.

Open-sourcing the law also means building a community. In the spirit of the Free Software Movement, this whitepaper adapts Richard Stallman's four fundamental freedoms[10] to the legal domain. Just as those freedoms ensure that software users retain control over the programs they use, the analogous freedoms below ensure that users of this Kernel retain agency over how they engage with IHL:

1. **Freedom to Run.** Use the Kernel whenever and for whatever purpose you wish, provided the purpose is ethical and aligned with humanitarian principles.
2. **Freedom to Study and Modify.** Examine the IHL Kernel's structure and adapt it to the specific legal landscape of your jurisdiction or research needs.
3. **Freedom to Distribute.** Share exact copies of this Kernel freely with colleagues, students, and humanitarian workers.
4. **Freedom to Distribute Modified Versions.** Share copies of your adapted version so that the wider community benefits from jurisdictional customisations, doctrinal updates, and improved annotations.

Much as the Linux ecosystem represents a Free and Open-Source Software (FOSS) community whose transformational contributions have given the world free software, this artifact aims to become the first **Free Open-Source Legal Artifact (FOSLA)**. The interactive nature of this document seeks to create a living map where users can hold specialised discussions, domain experts can contribute updates, and the writings of "the most highly qualified publicists"—the doctrine—find a central place for compilation.

This project is aligned with the principle that knowledge, and the Law as a domain example, should be accessible to all. Approach this artifact in whatever manner serves your needs, and use it for ethical good and for the alleviation of those affected by armed conflict.

[9] Greenwood, Christopher, "Sources of International Law: An Introduction," United Nations Audiovisual Library of International Law, available at https://legal.un.org/avl/pdf/ls/greenwood_outline.pdf

[10] Stallman, Richard, "The Free Software Definition," Free Software Foundation, first published in *GNU's Bulletin*, Vol. 1, No. 1, February 1986. Current version at https://www.gnu.org/philosophy/free-sw.html

1.1. What Is a Kernel?

In computer science, a kernel is a program at the core of a computer's operating system that manages all interactions between hardware and software. It is responsible for mediating conflicts between different processes, allocating memory, and ensuring that the various components of the system function cohesively. The kernel never executes the user's tasks directly; instead, it provides the essential infrastructure that makes those tasks possible.

Translated to the legal domain, the IHL Kernel functions as a core operating system for how we understand and navigate the law. It integrates the "programmes" (sources) of international law and mediates their interaction within a single unified framework. Just as a computer kernel prevents process conflicts by arbitrating resource access, this legal Kernel helps resolve normative conflicts by mapping which source takes precedence in a given context—applying principles such as lex specialis and lex posterior. The result is a simplified approach to the law through a single consultable document.

1.2. Modding the Law

International Law is inherently modular. States operate under different regimes of international law depending on which treaties they have ratified, which customary practices they have persistently objected to, and which tribunal jurisdictions they have accepted.[11] On a second layer, constitutional law and internal ratification mechanisms determine the hierarchical position that international law occupies within each domestic legal order. This modularity mirrors the way open-source software can be modified to satisfy specific needs.

In practice, "modding" the Kernel looks like the ability to toggle options based on: the ratification status of a given treaty by a specific State; persistent objector status to a rule of customary law; unrecognised jurisdiction of certain courts or tribunals; and the distinction between Hard Law (binding obligations) and Soft Law (persuasive but non-binding instruments). Users should be able to configure these parameters to produce a view of IHL that accurately reflects a particular jurisdiction.

Important caveat: The Kernel, whether in its original or modified form, serves only as a reference tool. It must not be understood as a new source of law, nor as authoritative truth within the IHL community.

2. The Common Articles Example

The Geneva Conventions of 1949 provide the clearest illustration of how the Kernel approach works in practice. All four Conventions share three "Common Articles"—identical provisions that appear in each instrument and constitute the minimum normative floor of IHL.[12]

[11] Peters, Anne, "The Refinement of International Law: From Fragmentation to Regime Interaction and Politicization," *International Journal of Constitutional Law*, Vol. 15, No. 3, pp. 671–704 (2017).

[12] Geneva Conventions of 12 August 1949, Common Articles 1–3. All four Conventions share identical text in these articles. 196 States are party to the Conventions, making them universally ratified.

Common Article 1 establishes the foundational obligation: "The High Contracting Parties undertake to respect and to ensure respect for the present Convention in all circumstances."[13] This dual obligation—to comply with IHL themselves and to ensure compliance by others—has been interpreted by the ICRC as encompassing both internal enforcement (training armed forces, establishing rules of engagement) and external enforcement (diplomatic pressure, sanctions, and cooperative measures to induce belligerent compliance). This provision binds all 196 States parties.

Common Article 2 defines the scope of application: the Conventions apply to all cases of declared war, to armed conflicts between two or more High Contracting Parties even absent a formal declaration of war, and to situations of partial or total occupation. This article resolved a critical historical gap whereby belligerents could evade humanitarian obligations by refusing to declare war formally.

Common Article 3 functions as what the ICRC has called "a Convention in miniature."[14] It extends fundamental protections to persons taking no active part in hostilities during non-international armed conflicts. These minimum guarantees—prohibitions on violence to life and person, hostage-taking, outrages upon personal dignity, and the passing of sentences without due process—constitute a non-derogable baseline that applies regardless of the nature or classification of the conflict.

Kernel Analogy: Mapping Common Articles to System Functions

Common Article	IHL Function	Kernel Equivalent
Art. 1	Obligation to respect and ensure respect	System boot loader – ensures the OS enforces its own rules and monitors compliance across all processes
Art. 2	Scope of application (IAC, occupation)	Process scheduler – determines which set of rules (processes) apply to a given context
Art. 3	Minimum protections in NIAC	Kernel panic handler – the non-derogable baseline that activates when the system enters its most critical state

This mapping demonstrates how the Kernel metaphor operates: each layer of IHL corresponds to a system function, and the Common Articles represent the most fundamental level of the operating system—the layer that cannot be removed or deactivated without the entire system collapsing.

3. Associated Risks to This Methodology

[13] ICRC, Common Article 1: Obligation to Respect and Ensure Respect for IHL, International Review of the Red Cross (2020).
[14] ICRC, "The Geneva Conventions and their Additional Protocols," International Committee of the Red Cross, https://www.icrc.org/en/geneva-conventions-and-law (last accessed April 2026).

Any attempt to simplify a complex legal regime inevitably introduces risks. Transparency about these risks is essential to the integrity of the Kernel project.

Over-simplification. The primary risk is that users may treat the Kernel as a definitive statement of the law rather than as a navigational aid. IHL norms are context-dependent: the same rule may apply differently depending on whether a conflict is classified as international or non-international, whether a State has ratified a particular protocol, or whether a customary norm has crystallised in a given context. The Kernel deliberately abstracts away this complexity; users must return to primary sources for authoritative interpretation.

Currency and maintenance. International law evolves continuously through new treaties, advisory opinions, judicial decisions, and shifts in State practice. A static document risks becoming outdated. The open-source model addresses this partially—community contributions can keep the Kernel current—but a governance structure for quality control and version management is essential.

Jurisdictional variance. As discussed in the "Modding" section, the law applicable to any given situation depends heavily on which State's obligations are at issue. A single un-modded Kernel cannot capture the full diversity of State obligations. Users in specific jurisdictions must configure the Kernel accordingly, and failure to do so may produce misleading results.

AI-generated content risks. Portions of this research have been built with the assistance of AI systems. While AI excels at systematising large bodies of law, the risks of hallucination (generating plausible but incorrect legal statements) and sycophancy (confirming user assumptions rather than challenging them) are well documented.[15] Every statement in this Kernel has been reviewed by a human, but the community annotation model is designed to provide an additional layer of verification.

Misuse by belligerents. Making IHL more accessible is a double-edged sword. While the primary intention is to promote compliance, there is a risk that actors may use simplified summaries to identify loopholes or to construct arguments for conduct that the law prohibits. This risk is inherent in any educational resource and is mitigated by the Kernel's consistent emphasis on returning to primary sources and seeking qualified legal counsel.

4. Limitations of This Research

This whitepaper does not purport to be comprehensive, and several significant limitations must be acknowledged.

Scope. The Kernel focuses primarily on the jus in bello (law governing the conduct of hostilities) and does not address jus ad bellum (the law governing the resort to force) except where the two intersect. Similarly, the treatment of International Criminal Law, International Human Rights Law, and Refugee Law is limited to their points of interaction with IHL.

[15] On AI hallucination risks in legal contexts, see Ji, Ziwei et al., "Survey of Hallucination in Natural Language Generation," *ACM Computing Surveys*, Vol. 55, No. 12 (2023).

Language. The current version is written in English. Given that the Geneva Conventions are equally authentic in English, French, Spanish, Russian, Chinese, and Arabic, future versions should be made available in all official UN languages at minimum.

Depth of doctrinal coverage. This version provides an index-level treatment of sources. It does not replicate the depth of specialised commentaries such as the ICRC's Updated Commentaries on the Geneva Conventions or the ICRC's Study on Customary International Humanitarian Law.[16] Users requiring detailed analysis of specific rules must consult these primary works.

Non-State armed groups. IHL binds non-State armed groups, but the mechanisms by which these obligations arise and are enforced are contested. The Kernel's State-centric modding system does not yet adequately capture the obligations of non-State actors.

Emerging domains. Cyber operations, autonomous weapons systems, outer space, and the environmental dimensions of armed conflict are areas where the law is developing rapidly. The current Kernel offers only preliminary coverage of these domains.

5. Further Research and the Kernel as a Living Artifact

This research, though reviewed by the author (a human), has been built with the assistance of AI systems, which are proficient at systematising large bodies of law. Nevertheless, the risks of AI hallucination and sycophancy are real,[17] and that is precisely why human review and community engagement are non-negotiable components of this methodology. A community of annotators, commentators, and reformers is what can make this Kernel stronger—transforming it from a single author's effort into a collective enterprise.

Concrete avenues for further development include: building a version-control system modelled on Git, enabling tracked changes, branching, and merging of different jurisdictional configurations; developing an interactive web-based interface that allows real-time modding and annotation; creating jurisdiction-specific modules for States with distinct treaty ratification profiles; integrating the ICRC's Customary IHL Database as a structured data layer; and designing a peer-review governance model that balances openness with quality assurance.

The Kernel should ultimately be understood not as a finished product but as an artifact in the computing sense—a structured object designed to evolve through iterative refinement by its community of users.

6. The Ideal AI Tool and the Kernel Token Leverage

One of the most promising applications of the IHL Kernel is as a structured context layer for AI systems. Current large language models require extensive context to answer IHL questions reliably, consuming large volumes of tokens and necessitating powerful hardware. The Kernel

[16] Henckaerts, Jean-Marie and Doswald-Beck, Louise, *Customary International Humanitarian Law, Volume I: Rules*, Cambridge University Press (2005). Commissioned by the ICRC at the 26th International Conference of the Red Cross and Red Crescent.

[17] See n. 9 above.

addresses this by providing a pre-structured, pre-verified reference document that dramatically reduces the context burden.

The concept of Kernel Token Leverage operates as follows: rather than requiring an AI model to ingest entire treaties, commentaries, and case law for each query, the Kernel provides a compressed, indexed map of normative relationships. The AI system can consult the relevant section of the Kernel, identify the applicable sources, and retrieve only the primary material necessary to answer a specific question. This approach reduces token consumption by an order of magnitude, enabling smaller, lighter models—such as those designed for local on-device deployment—to provide competent IHL guidance.

The practical implication is significant: a humanitarian worker in a remote context with no internet connection could run a local AI model on a mobile device, backed by the Kernel as its IHL knowledge base, and receive immediate guidance on questions such as the status of a medical facility under attack, the obligations applicable in a situation of occupation, or the procedural requirements for internment of protected persons. This does not replace qualified legal counsel, but it provides a first-response capability where no counsel is available.

The ideal AI tool for IHL would combine: the structured knowledge of the Kernel as a context layer; retrieval-augmented generation to pull relevant primary sources on demand; guardrails against hallucination through source-verification mechanisms; and an explicit refusal to fabricate citations or legal rules not grounded in the indexed sources.

7. Recommendations and Action Paths

Based on the analysis above, the following recommendations are offered to different stakeholder groups.

For Humanitarian Organisations

- Pilot the Kernel as a field reference tool in training programmes and deploy it alongside existing IHL resources to evaluate its utility in operational contexts.
- Contribute subject-matter expertise to the Kernel's ongoing refinement through an annotator community modelled on open-source contribution guidelines.
- Assess the feasibility of deploying local AI models backed by the Kernel for field consultation in environments with limited connectivity.

For Academic Institutions

- Adopt the Kernel as a supplementary pedagogical tool in IHL courses, encouraging students to engage with the source-mapping methodology.
- Commission jurisdiction-specific modules as student research projects, contributing to both the Kernel and to students' understanding of comparative IHL.
- Integrate the Kernel into moot court preparation—particularly for competitions like the Jean Pictet—as a rapid-reference framework.

For Technologists and AI Developers

- Build version-control infrastructure (Git-based or equivalent) to support collaborative development, branching, and jurisdictional modding.
- Develop retrieval-augmented generation pipelines optimised for IHL queries, using the Kernel as the primary context layer with on-demand access to full treaty texts.
- Design and validate hallucination-detection mechanisms specific to legal reasoning, ensuring that AI outputs can be traced back to verified sources within the Kernel.

For States and Belligerent Parties

- Use the Kernel as an index for training programmes on IHL obligations, ensuring that operational legal advisors have a rapid-reference tool available.
- Contribute to the modding system by verifying that jurisdiction-specific configurations accurately reflect the State's treaty obligations, reservations, and declarations.

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Geneva Convention (III) Relative to the Treatment of Prisoners of War, 12 August 1949, 75 UNTS 135.

Geneva Convention (IV) Relative to the Protection of Civilian Persons in Time of War, 12 August 1949, 75 UNTS 287.

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Annex: Common Article 3 — Annotated

The following annotated text demonstrates the Kernel methodology applied to Common Article 3. Bold text reproduces the treaty verbatim. Colour-coded text represents interpretations: **ICTY**, **ICTR**, **ICC**, **ICJ**, **ICRC Customary IHL Rules**, **ICRC Commentary**, **Doctrine**, **Other Tribunals**. *Superscript numbers link to footnotes with full citations.*

Article 3 — Chapeau (Scope of Application)

> **In the case of armed conflict not of an international character occurring in the territory of one of the High Contracting Parties, each Party to the conflict shall be bound to apply, as a minimum, the following provisions:**

Two cumulative criteria apply: (i) intensity of hostilities and (ii) organisation of the non-state party.[18] Intensity requires collective hostilities or use of military force; banditry, unorganised insurrections, or terrorism are insufficient.[19] The 'protracted armed violence' standard is widely accepted; a single isolated act will not qualify.[20]

Organisation requires command structure, capacity to sustain operations, and ability to implement IHL—assessed via hierarchy, discipline, logistics, and ability to speak with one voice.[21] The ICC endorsed this test; criteria are assessed holistically.[22]

Classification is objective and independent of legal status or state recognition.[23] IHL applies to the entire territory under the parties' control, not only the immediate theatre.[24]

Art. 3A. Coalitions and Third-Party Support (2025 update)

Coalition groups: intensity may be assessed in aggregate if coordination is sufficient.[25] Third-party status requires a 'direct and effective contribution'—pooling military resources or coordinating against a common enemy.[26] Private companies may qualify if they meet the same organisational criteria.[27]

Article 3(1) — Persons Protected and Absolute Prohibitions

> **(1) Persons taking no active part in the hostilities, including members of armed forces who have laid down their arms and those placed hors de combat by sickness, wounds, detention, or any other cause, shall in all circumstances be treated humanely, without any adverse distinction founded on race, colour, religion or faith, sex, birth or wealth, or any other similar criteria.**

Covers civilians not directly participating, members who laid down arms, and persons hors de combat.[28] Protects persons on all sides—including a party's own forces when hors de combat.[29] Protection applies regardless of party affiliation.[30]

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[18] ICTY, Tadić, AC, IT-94-1-AR72, 2 Oct. 1995, ¶ 70
[19] ICTY, Tadić, ¶ 70; ICRC Commentary GC I (2016), ¶ 431
[20] ICRC Commentary GC I (2016), ¶¶ 423–432; GC III (2020), ¶¶ 310–311
[21] ICTY, Tadić, ¶ 70; Boškoski, TC II, ¶ 175; Haradinaj et al., TC I, ¶ 60
[22] ICC, Bemba, TC III, ICC-01/05-01/08-3343, 21 Mar. 2016, ¶¶ 131–137
[23] ICRC Commentary GC I (2016), ¶ 395
[24] ICTY, Tadić, TC I, IT-94-1-T, 7 May 1997, ¶ 565
[25] ICRC Commentary GC IV (2025), ¶ 505
[26] ICRC Commentary GC IV (2025), ¶ 519; ICRC Opinion Paper (2024), p. 16
[27] ICRC Commentary GC IV (2025), ¶ 525
[28] ICRC Commentary GC I (2016), ¶¶ 537–541
[29] ICC, Ntaganda, AC, ICC-01/04-02/06, 30 Mar. 2021, ¶¶ 46–52
[30] ICRC Commentary GC I (2016), ¶ 547

Humane treatment is absolute and non-derogable, applying at all times throughout the affected territory.[31] The prohibited grounds of distinction are non-exhaustive; the 2025 revision confirms inclusion of sexual orientation and gender identity.[32]

Article 3(1)(a) — Violence to Life and Person

> **(a) Violence to life and person, in particular murder of all kinds, mutilation, cruel treatment and torture;**

Absolute prohibition encompassing wilful killing, mutilation, corporal punishment, and physical or mental coercion.[33] Torture requires severe pain/suffering plus a specific purpose; cruel treatment falls below this threshold.[34] Sexual violence falls under this provision as torture or cruel treatment.[35]

Customary Extension (IAC and NIAC)

CIHL Rules 87 (humane treatment), 90 (torture/cruel treatment/outrages prohibited), 91 (corporal punishment), 92 (mutilation).[36]

Article 3(1)(b) — Hostage-taking

> **(b) Taking of hostages;**

Seizure or detention coupled with a threat to kill, injure, or continue detention to compel a third party. Absolute prohibition; customary law in NIAC.[37]

Customary Extension

CIHL Rule 96: hostage-taking prohibited (IAC and NIAC).[38]

Article 3(1)(c) — Outrages upon Personal Dignity

> **(c) Outrages upon personal dignity, in particular humiliating and degrading treatment;**

Broadly interpreted: any sufficiently serious, intentional act targeting a victim's dignity.[39] Includes sexual violence, mutilation of corpses, human shields, and forced degrading acts.[40]

Customary Extension

CIHL Rule 90: torture, cruel/inhuman treatment, and outrages upon personal dignity prohibited (IAC and NIAC).[41]

Article 3(1)(d) — Judicial Guarantees

> **(d) The passing of sentences and the carrying out of executions without previous judgment pronounced by a regularly constituted court, affording all the judicial guarantees which are recognised as indispensable by civilised peoples.**

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[31] ICTY, Tadić, AC, ¶ 70
[32] ICRC Commentary GC IV (2025), CA3 section
[33] ICTR, Akayesu, TC I, ICTR-96-4-T, 2 Sep. 1998, ¶ 629; ICTY, Čelebići, TC, ¶ 543
[34] ICTY, Čelebići, ¶ 442; Kunarac et al., AC, ¶¶ 142–148
[35] ICRC Commentary GC I (2016), ¶ 637; ICTR, Akayesu, ¶¶ 688–697
[36] ICRC CIHL, Rules 87, 90, 91, 92
[37] ICTY, Blaškić, TC, IT-95-14-T, 3 Mar. 2000, ¶ 158; Tadić, TC, ¶ 616
[38] ICRC CIHL, Rule 96
[39] ICRC Commentary GC I (2016), ¶¶ 657–667
[40] ICC, Katanga, ¶¶ 996–1002
[41] ICRC CIHL, Rule 90

'Regularly constituted court': established under pre-existing law; ad hoc or summary tribunals do not qualify.[42] Minimum guarantees (non-exhaustive): presumption of innocence, notice of charges, adequate defence preparation, trial in presence, legal representation, privilege against self-incrimination, right of appeal.[43] No ex post facto criminalisation.[44]

Customary Extension

CIHL Rules 100 (fair trial), 101 (no retroactive law), 103 (collective punishments prohibited). All IAC and NIAC.[45]

Article 3(2) — Wounded and Sick; ICRC Right of Initiative

> **(2) The wounded and sick shall be collected and cared for.**

Applies to all wounded/sick of any party. The obligation to collect is active: search after each engagement, protect against pillage.[46] Medical personnel, units, and transports must be respected and protected.[47]

Customary Extension

CIHL Rules 109 (search, collect, evacuate without adverse distinction) and 110 (medical care to fullest extent practicable). Both IAC and NIAC.[48]

> **An impartial humanitarian body, such as the International Committee of the Red Cross, may offer its services to the Parties to the conflict.**

The ICRC's right to offer services is treaty-based. Rejection does not per se violate CA3, but parties must give serious consideration to good-faith offers.[49] Broader right of humanitarian initiative under ICRC Statutes below the NIAC threshold.[50]

Article 3(3) — Special Agreements

> **(3) The Parties to the conflict should further endeavour to bring into force, by means of special agreements, all or part of the other provisions of the present Convention.**

Encourages but does not require extending the full Convention by agreement. Such agreements (e.g., Bosnia 1992) do not confer belligerent recognition.[51]

Article 3(4) — Legal Status of the Parties

> **(4) The application of the preceding provisions shall not affect the legal status of the Parties to the conflict.**

Application of CA3 does not recognise the non-state party as a belligerent or prejudice the state's right to prosecute under domestic law.[52] No combatant immunity in NIAC: non-state fighters may be prosecuted even for acts lawful under IHL.[53]

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[42] ICRC Commentary GC I (2016), ¶¶ 680–687; GC III (2020), ¶¶ 740–750
[43] ICRC Commentary GC I (2016), ¶¶ 693–718; GC III (2020), ¶¶ 754–800
[44] ICRC CIHL, Rule 101; ICRC Commentary GC I (2016), ¶ 718
[45] ICRC CIHL, Rules 100, 101, 103
[46] ICRC Commentary GC I (2016), ¶¶ 721–737
[47] ICRC CIHL, Rules 25, 28, 29
[48] ICRC CIHL, Rules 109, 110
[49] ICRC Commentary GC I (2016), ¶¶ 833–840
[50] ICRC, Position Paper, 2021, p. 6
[51] ICRC Commentary GC III (2020), ¶¶ 850–858
[52] ICRC Commentary GC I (2016), ¶¶ 855–860
[53] Sassòli, IHL, Edward Elgar, 2019, p. 198; Dinstein, Conduct of Hostilities, 3rd ed., CUP, 2016, p. 31

General Customary Extension (ICRC CIHL Rules 87–105)

The ICRC Customary IHL Study identifies these rules as applicable in NIACs, extending CA3 even absent treaty obligation: Rules 87–88 (humane treatment, non-distinction), 89 (violence to life), 90 (torture/cruel treatment), 93 (rape/sexual violence), 95 (forced labour), 96 (hostages), 97 (human shields), 98 (enforced disappearances), 99 (arbitrary detention), 100–103 (fair trial), 109–110 (wounded/sick). All IAC and NIAC.[54]

[54]Henckaerts & Doswald-Beck, Customary IHL, ICRC/CUP, 2005, Vol. I, pp. 306–380 (Ch. 32)